

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Samsung Electronics America, Inc.	)	
	)	
	)	
<i>Complainant,</i>	)	
	)	
v.	)	
	)	
WAN HAI LINES, LTD.	)	
	)	
	)	
	)	
<i>Respondent.</i>	)	
	)	

DOCKET NO. 26-06

**RESPONDENT’S REPLY TO COMPLAINANT’S OPPOSITION TO RESPONDENT’S
PARTIAL MOTION TO DISMISS AND FOR ENTRY OF AN ORDER REQUIRING
THE FILING OF AN AMENDED COMPLAINT AND INCORPORATED MOTION TO
FILE AMENDED COMPLAINT**

Respondent Wan Hai Lines, Ltd. (“Wan Hai” or “Respondent”), replies to the Opposition of Complainant Samsung Electronics America, Inc. (“SEA” or “Complainant”) to Respondent’s Partial Motion to Dismiss and for Entry of an Order Requiring the Filing of an Amended Complaint (the “Opposition”) and Complainant’s Incorporated Motion to File an Amended Complaint (“Motion to File an Amended Complaint”).

I. INTRODUCTION

On June 15, 2026, Respondent filed the Partial Motion to Dismiss and for Entry of an Order Requiring the Filing of an Amended Complaint (the “Motion to Dismiss”). Dkt. 10. The Motion to Dismiss requested dismissal of certain claims asserted in Count II of SEA’s Complaint (Dkt. 1) related to Wan Hai’s dispute resolutions processes. See Motion to Dismiss at 35.

Respondent's Motion to Dismiss also sought entry of an Order requiring SEA to file an amended complaint "setting forth the amount of reparations [SEA] seeks" because, despite having already been repeatedly ordered by administrative law judges in other proceedings before the Commission to provide this information, SEA again chose to file its Complaint without providing complete detail as to its claims. Motion to Dismiss at 5-6.

On June 30, 2026, Complainant filed its Opposition to the Motion to Dismiss (the "Opposition") and incorporated a Motion to File an Amended Complaint. Docket 11. Therein, Complainant attached a copy of a proposed amended complaint (the "Amended Complaint"), requested that the Presiding Officer accept it as the "operative complaint" in this proceeding, and sought dismissal of the Motion to Dismiss as moot on the basis of the Amended Complaint. Opposition at 2-4.

While Wan Hai does not object to the filing of the Amended Complaint, Wan Hai respectfully submits any denial of the Partial Motion to Dismiss as moot should be without prejudice to Wan Hai's right to file a Motion to Dismiss the Amended Complaint which, as briefly described below, remains deficient as a matter of law.

II. Any Denial of the Partial Motion to Dismiss Should Be Without Prejudice

SEA requests that the Partial Motion to Dismiss be deemed moot on the basis of a document that the Presiding Officer has not yet accepted for filing. As such, a response to this request would require Wan Hai to offer arguments based on a pleading that is not part of the docket for this proceeding. While SEA appears to have added detail as to the amount of damages it seeks, Wan Hai maintains that the Amended Complaint remains insufficiently pled as to the substantive allegations at issue in its Partial Motion to Dismiss. Wan Hai reserves all

rights to proffer arguments in support of that position when it is procedurally appropriate to do so.

Thus, if the Presiding Officer deems it appropriate to accept the Amended Complaint, that ruling should be without prejudice to Wan Hai's right to file another Motion to Dismiss Complainant's Amended Complaint.

III. SEA's Amended Complaint Is Deficient As a Matter of Law

In its Partial Motion Dismiss, Wan Hai argued that "SEA must allege that it attempted to use Wan Hai's existing dispute resolution procedures and must explain how the procedures were insufficient." Partial Motion to Dismiss at 3. SEA did not make such allegations in its Complaint and its Amended Complaint fails to do so as well. In reality, SEA's claim appears to simply be based on the allegation that Wan Hai would not pay SEA's demands. In this regard, as noted in the Partial Motion to Dismiss, SEA acknowledged that the parties had engaged in "multiple discussions and meetings, between November 2022 to date" in attempts to resolve the dispute (Complaint at ¶ 55) and explained that "SEA has met with Wan Hai personnel on multiple occasions and has provided Wan Hai with information and data regarding the claimed amounts, but Wan Hai and SEA were not able to resolve the dispute." Complaint at ¶ 34.

Amongst other changes, SEA's proposed Amended Complaint replaces paragraph 34 of the Complaint cited above with a new Paragraph 37 in the Amended Complaint. In doing so, SEA deleted its acknowledgement that the parties engaged in multiple discussions and meetings in an attempt to resolve the claims at issue in this proceeding and replaces it with an allegation that "SEA has sought to resolve the dispute with Wan Hai on multiple occasions" but that it did not receive "a substantive response from Wan Hai."

Despite SEA's sleight of hand in utilizing the proposed Amended Complaint to remove allegations SEA verified in its original Complaint, and which it now realizes were damaging to its claim, the Presiding Officer should exercise her discretion to take notice of the now deleted admission even if the Amended Complaint is accepted.

As noted, Wan Hai does not object to the filing of the Amended Complaint. However, the amendment of a pleading does not mean that admissions or factual allegations contained in the original cease to exist. *See e.g., Andrews v. Metro N. Commuter R. Co.*, 882 F.2d 705, 707 (2d Cir. 1989) ("The amendment of a pleading does not make it any the less an admission of the party"); *United States v. McKeon*, 738 F.2d 26, 31 (2d Cir.1984) ("A party ... cannot advance one version of the facts in [his] pleadings, conclude that [his] interests would be better served by a different version, and amend [his] pleadings to incorporate that version, safe in the belief that the trier of fact will never learn of the change in stories.").

As stated in the Partial Motion to Dismiss, SEA makes no allegations beyond conclusory and unsupported statements that Wan Hai failed to have processes for resolving disputes or that elements of those processes were unreasonable. Partial Motion to Dismiss at 4-5. Rather, SEA acknowledged in the language it now seeks to delete from its Complaint that the Parties engaged in extensive discussions in attempts to resolve the disputes, but were simply unable to do so. While the reasonableness of the underlying charges at issue will be adjudicated in resolution of SEA's other claims, the simple fact that those claims could not be resolved to SEA's satisfaction through Wan Hai's dispute processes does not render those processes unreasonable. No arguments raised by SEA in its Opposition (or its Amended Complaint) provide any grounds to infer or conclude otherwise.

IV. CONCLUSION

For the foregoing reasons and those stated in the Partial Motion to Dismiss, Wan Hai respectfully requests that, should the Presiding Officer grant SEA's Motion to File an Amended Complaint, the ruling should be without prejudice to Wan Hai's right to again move to dismiss, with prejudice, SEA's claims with respect to the reasonableness of its dispute resolution practices under 41102(c) in Count II of its Amended Complaint.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Joshua Stein', with a stylized flourish at the end.

Joshua Stein

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Dated: July 7, 2026

CERTIFICATE OF SERVICE

I certify that, on July 7, 2026, a true and current copy of the foregoing Reply to Complainant's Opposition to Respondent's Partial Motion to Dismiss and for Entry of an Order Requiring the Filing of an Amended Complaint and Incorporated Motion to File Amended Complaint was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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Counsel to Samsung Electronics America, Inc

Dated: July 7, 2026

/s/ Joshua Stein

Joshua Stein
Cozen O'Connor